

Chapter 705

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[HISTORY: Adopted by the Board of County Commissioners (now County Council) of Allegheny County as indicated in Part histories. Amendments noted where applicable.]

AIRPORTS

GENERAL REFERENCES

Airport fees — See Ch. A5.

Part 1
Airport Courtesy Vehicles
[Adopted 3-22-1979]

ARTICLE I
Permit Issuance and Regulations

§ 705-1. Definitions.

As used in this Part 1, the following terms shall have the meanings indicated:

AIRPORT — The Pittsburgh International Airport, as it now exists or hereafter may be changed, modified or expanded.

BOARD OF COUNTY COMMISSIONERS — Such public officials and public bodies as may by operation of law succeed to any of the rights, powers or duties which as of the date of enactment of this Part 1 lawfully reside in the Board of County Commissioners.

COUNTY — The County of Allegheny.

COURTESY VEHICLE — Any automobile, van, station wagon, bus, limousine or other motor vehicle regularly operated for the transportation of customers or baggage between the airport and a motel, hotel, parking facility, or auto rental facility situated off airport premises, except a carrier for hire certificated by a State Public Utility Commission or operated or authorized for operation by an authority created pursuant to an act of the State Legislature. Notwithstanding the foregoing, a motor vehicle operated pursuant to a contract in which the County has granted authority to operate either directly or through a third party shall not be considered a courtesy vehicle for purposes of this Part 1.

COURTESY VEHICLE SERVICE — The regular transportation by courtesy vehicle of customers or baggage between the airport and a motel, hotel, parking facility or auto rental facility situated off airport premises.

DIRECTOR — The Director of the County's Department of Aviation and includes such persons as from time to time may be authorized by the Board of County Commissioners or by the Director to act for the Director.

PERMITTEE — Any person who has been issued a permit by the Director to operate a courtesy vehicle pursuant to this Part 1.

PERSON — Every natural person, partnership, association and corporation who is an owner, operator or lessee of any motor vehicle.

§ 705-2. Courtesy vehicles; courtesy service.

- A. No person shall drive or cause to be driven any courtesy vehicle upon the premises of the airport, or provide or cause to be provided any courtesy vehicle service to passengers or other persons at the airport unless a written permit shall have been first obtained for such courtesy vehicles from the Director, as hereinbelow provided, the fee hereinbelow established for such permit shall have been paid, and there shall be displayed on the courtesy vehicle such evidence of the permit as the Director shall from time to time determine, in such manner as the Director shall from time to time determine.
- B. No person shall drive or cause to be driven any courtesy vehicle upon the premises of the airport, or provide or cause to be provided any courtesy vehicle service to passengers or other persons at the airport in violation of any of the terms, conditions or other provisions of a permit issued pursuant to

this Part 1, or under color of an expired or revoked permit.

§ 705-3. Permit program.

- A. Any person desiring to drive any courtesy vehicle upon the premises of the airport or to provide any courtesy vehicle service to passengers or other persons at the airport shall first obtain a written permit from the Director. Each person wishing to obtain a permit shall make written application therefor to the Director in such form as the Director shall prescribe, setting forth the name, address, telephone and type of business of applicant, the types of vehicles to be used, the vehicle identification number and state vehicle registration number of each vehicle, and such other information as the Director may require. Each application shall be accompanied by cash or by a check or money order payable to the County of Allegheny, in the amount determined in accordance with the provisions of § 705-6 hereof.
- B. The Director shall, within a reasonable time after the receipt of the permit application and fee described in Subsection A above, issue to the applicant a courtesy vehicle permit valid for one calendar year or the remaining portion of any calendar year, unless it shall appear that:
- (1) The application is incomplete.
 - (2) The application contains false statements by applicant.
 - (3) The permit is sought in furtherance of or in connection with some unlawful enterprise or activity.
 - (4) Due to the nature, size, configuration or other characteristic of the courtesy vehicle, it can reasonably be expected that the granting of the permit would create a threat to the health or safety of persons or property in or about the airport, or would be likely to interfere with the safe, orderly and expeditious flow of traffic to, from, at or about the airport.
 - (5) The applicant is in violation of a previously issued courtesy vehicle permit.
- C. In the event that a permit application hereunder is denied, the Director shall give prompt written notice thereof to the applicant advising of the reason for the denial, and shall refund to applicant the permit fee submitted by applicant in connection with the application. The applicant shall have 30 days from the date of denial to appeal such denial to the Board of County Commissioners.

§ 705-4. Permit conditions.

All permits issued pursuant hereto shall be in such form as the Director shall from time to time determine, shall be expressly conditioned upon permittee's observance of all federal, state, County and municipal laws, ordinances, rules and regulations and such directives and procedures as may from time to time be established by the Director, and shall include such additional terms, conditions and other provisions as the Director may from time to time reasonably establish for the public health and safety, the security and good order of the airport, and the expeditious flow of traffic to, from, at and about the airport.

§ 705-5. Courtesy areas.

All persons required to operate under a permit as herein provided shall drive only upon such ways, and pick up and discharge passengers only at such locations, and remain thereon only for such periods of time, as the Director shall from time to time designate and determine.

§ 705-6. Fees. [Amended 12-13-1990]

The Board of County Commissioners shall establish fees for all courtesy vehicle service at the airport.¹

§ 705-7. Permit revocation.

The Director may revoke any permit issued hereunder if the permittee or any driver or other person in charge of a courtesy vehicle shall violate any law, ordinance, rule or regulation of any governmental entity (including, but not limited to, any law, ordinance, rule or regulation pertaining to motor vehicles), or any provision of the permit, or any rule, regulation, order or directive established by the Director for the airport. The Director shall give permittee written notice of revocation, and permittee shall have 30 days from the date of revocation to appeal such revocation to the Board of County Commissioners. A permittee whose permit has been revoked shall not be entitled to any refund of any permit fee paid hereunder.

§ 705-8. Violations and penalties.

- A. Any person violating any provision of this Part 1 shall, upon conviction thereof at a summary proceeding, be sentenced to pay a fine not in excess of \$100 to be paid to the use of the County, with costs of prosecution, or to be imprisoned in the County jail for not more than 30 days.
- B. In addition to any sums paid pursuant to Subsection A of this section, any person violating any provision of this Part 1 may, at the discretion of the County, be required to pay a fine of \$500, which fine may be collected by suit brought in the name of the County in like manner as like amount may be sued for.
- C. Each violation hereunder shall constitute a separate offense subject to the penalties and fines set forth in this section.

§ 705-9. Enforcement.

The County police shall have the power and the duty to enforce this Part 1, and the Director shall have the power and duty to design and require the use of such forms, and to establish such procedural rules as he shall from time to time deem necessary or conducive to the proper and efficient administration of this Part 1.

1. Editor's Note: The current fees for airport courtesy vehicle service are on file in the County offices.

Part 2
Airport Rules And Regulations
[Adopted 2-23-1989]

ARTICLE II
General Conduct

§ 705-10. Disorderly conduct.

- A. No persons shall be or become intoxicated or drunk, commit any disorderly, obscene or indecent act, or commit any act of nuisance on the airport.
- B. Offense defined. A person is guilty of disorderly conduct if, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, he:
 - (1) Engages in fighting or threatening or in violent or tumultuous behavior.
 - (2) Makes unreasonable noise.
 - (3) Uses obscene language, or makes an obscene gesture.
 - (4) Creates a hazard or physically offensive condition by any act which serves no legitimate purpose of the actor.

§ 705-11. Gambling.

No persons shall engage in or conduct gambling in any form or operate gambling devices anywhere on the airport, or other than the Pennsylvania Lottery or other forms permitted by statute.

§ 705-12. Sanitation.

- A. No persons shall dispose of garbage, paper or refuse or other material on the airport, except in the receptacles provided for that purpose.
- B. No persons shall use a comfort station other than in a clean and sanitary manner.
- C. No persons shall eat food or drink beverages in the terminal building lobby, other than in the immediate area of purchase of any concession facility dispensing such products in the lobby area.
- D. No persons shall spit on the floors, walls or other surfaces of the terminal building.

§ 705-13. Preservation of property.

No person shall:

- A. Destroy, injure, deface or disturb in any way any building, sign, equipment, marker or other structure, tree, flower, lawn or other property on the airport.
- B. Smoke at the gates, ramps, taxiways, bulk fuel area, hangars, tank fill area, storeroom or any other area containing flammable materials; or in any area posted with "No Smoking" signs.
- C. Walk on the lawn and seeded areas on the airport.
- D. Alter, make additions to or erect any buildings or sign or make any excavations on the airport without

permission of the Director.

- E. Willfully abandon any personal property on the airport.
- F. Block any hallway, corridor or passageway so as to impede normal and proper use or passage.

§ 705-14. Weapons, explosives and inflammable materials.

No persons, except peace officers, law enforcement officers, duly authorized post office and customs official or members of the Armed Forces of the United States on official duty shall carry any weapons, explosives or inflammable material on the airport except by specific direction of the Director or Superintendent of Police or the designee of either.

§ 705-15. Turnstiles and coin-operated facilities.

No persons shall pass through, over or under a turnstile or coin operated door located on the airport that requires the deposit of a coin for such privilege, without depositing the required coin in turnstile or door.

§ 705-16. Interfering or tampering with aircraft.

No persons shall interfere or tamper with any aircraft or put in motion the engine of such aircraft, or use any aircraft, aircraft parts, instruments and tools without permission of the owner, or by specific direction of the Director.

§ 705-17. Restricted areas.

- A. No person shall enter any restricted area posted as being closed to the public except as may be permitted by this Part 2. Specifically this shall include:
 - (1) Field area.
 - (2) Federal Aviation Agency offices and tower.
 - (3) Utility and services areas.
 - (4) Other areas specifically designated by appropriate signs.
 - (5) Areas leased to tenants.
- B. Entry into all of the foregoing areas shall be denied except to persons assigned to duty therein, authorized representatives of the Director and passengers under appropriate supervision entering the field or apron area for the purpose of embarkment or debarkment.

§ 705-18. Soliciting.

- A. Purposes. The terms and conditions set out in this section are hereby declared to be necessary for accomplishment of the following purposes:
 - (1) To ensure that persons seeking to exercise constitutional freedoms of expression can communicate with users of the airport.
 - (2) To ensure police protection of persons exercising their constitutional freedoms.
 - (3) To ensure that properly authorized persons and organizations seeking to engage in these

authorized activities have adequate exposure to the traveling public.

- (4) To restrict such activities to public areas of airport buildings and premises.
- (5) To protect persons using the airport from repeated communications or encounters which might constitute harassment or intimidation.
- (6) To ensure the free and orderly flow of pedestrian traffic through the airport premises.
- (7) To ensure that these activities do not result in interference with the transportation function of the airport.

B. Definitions. The following words and phrases as used in this section shall be construed to have the following meaning:

APPLICANT — Individual, group, organization or members and representatives thereof, seeking a permit under this Part 2.

BOOTH — Any stall, stand, counter, table or other movable temporary structure approved by the Director.

BUSINESS OR COMMERCIAL ACTIVITY — All forms of communication whose primary purpose is the advertising or sale of a product or service for profit.

DESIGNATED AREA — Any one of those areas which are numbered one through six on a designated map of the airport floor plan to be kept on file in the office of the Director.

DIRECTOR — The Director of Aviation or any individual duly authorized to act on his behalf.

C. Business or commercial activities.

- (1) The provisions contained in this section shall not apply to individuals wishing to conduct business or commercial activities in, about or within the limits of the airport.
- (2) Any person or organization desiring to engage in any business or commercial activities in, about or within the limits of the airport must comply with the guidelines established by the Director for purposes of regulating the time, place and manner of such activities.

D. Permit required. Any person or organization desiring to distribute or display any literature, handbills, signs, cards or to solicit funds for any noncommercial, charitable, political or religious purposes in, about or within the limits of the airport shall first obtain a written permit from the Director.

E. Application for permit. For purposes of obtaining such permit, there shall be submitted to the Director a written application in the form prescribed by the Director setting forth at least the following:

- (1) The full name, mailing address and telephone number of the person or organization sponsoring, promoting or conducting the proposed activities.
- (2) The full name, mailing address and telephone number of the individual person or persons who will have supervision of and responsibility for the proposed activities.
- (3) The full name, mailing address and telephone number of the individual person or persons who will be engaged in the proposed activities.
- (4) A description of the proposed activities, indicating the manner of communication to be involved.

- (5) The dates and hours on and during which the applicants propose to conduct the activities, and their expected duration.
- F. Issuance of permit.
- (1) The permit shall be issued within five days following receipt of the application by the Director.
 - (2) All permits issued shall be valid for a specific time period not to exceed two weeks.
 - (3) The Director is authorized to issue a maximum of six permits at any one time. In the event that he receives more than six applications for permits at one time, the Director will issue permits to the first six applicant. The others will be placed on a waiting list. No permits will be renewed until every applicant on the waiting list has been issued a permit.
- G. Renewal of permit. Permits may be renewed by following the procedure set forth under Subsection E of this section.
- H. Duties and responsibilities of permittee.
- (1) Identification badge. All permittees shall wear an identification badge as provided by the Director at all time on airport property which shall contain in a form authorized by Director the following:
 - (a) Name.
 - (b) Address.
 - (c) Telephone number.
 - (d) Name of group or organization, if any.
 - (e) Photograph.
 - (2) Prohibited conduct. In conducting the activities described herein, no person shall:
 - (a) In any way obstruct, delay or interfere with the free movement of any other person.
 - (b) Coerce, threaten or physically disturb any other person.
 - (c) Use any sound or voice amplifying apparatus on the premises of the airport.
 - (d) Conduct any activities in a misleading or fraudulent manner.
- I. Designated areas.
- (1) The activities referred to herein shall be conducted only in or upon those areas designated by the Director.
 - (2) Each permit issued by the Director shall specify, in accordance with the provisions of this Part 2, the designated areas where the activities proposed by the applicant may be conducted.
 - (3) The director reserves the right to amend the location of the designated areas whenever necessary due to changes in traffic patterns, construction projects or other exigencies.
- J. Restricted areas. Under no circumstances shall the activities described in this Part 1 be permitted:

- (1) In any location reserved for particular uses such as parking, rest room facilities, restaurants, newsstands, ticket counters or baggage claims.
- (2) In any location where it would obstruct or interfere with public access to any entrance or exit to the terminal building, any concession or shop, stairwell, elevator, escalator or any security entrance or device.
- (3) Beyond the security checkpoints through which passengers and visitors are required to pass when moving toward aircraft gate positions, i.e., on the side of the security check points where the gate positions of arriving and department aircraft are located.
- (4) Within 30 feet of any security checkpoint.

K. Booths.

- (1) The Director may restrict any or all of the proposed activities to booths which shall be furnished by the Director.
- (2) The booths shall be located within the designated areas and at such specific points as shall be determined from time to time by the Director.
- (3) No more than three persons from one organization may be engaged in these activities in any one designated area at the same time.
- (4) In addition to the other requirements contained herein, the Director may require that a prominent and conspicuous sign be placed on the booth identifying the permittee.

L. Denial, suspension or cancellation of permit. A permit may be denied, suspended or canceled upon a showing that:

- (1) One or more of the statements contained in the application is not true.
- (2) The applicant has failed to supply all of the information required by the application.
- (3) The applicant who will participate in activities under the permit is presently engaged in a fraudulent or criminal transaction or enterprise.

M. Permit denial procedures. In the event that the permit is denied, the Director will seek approval of his decision within 10 days of this denial from a court of competent jurisdiction.

§ 705-19. Commercial photography.

No persons shall take still, motion or sound pictures for commercial purposes on the airport without the permission of the Director. Accredited news, newsreel or television cameramen shall secure clearance for their activities from the office of the Director to ensure compliance with applicable federal, state or local regulations.

§ 705-20. Use of roads and walks.

- A. No persons shall travel on the airport other than on the roads, walks, driveways or places provided for the particular class of traffic.
- B. No persons shall occupy the roads, walks or driveways in such a manner as to hinder or obstruct their proper use.

§ 705-21. Animals.

- A. No person shall enter the terminal building or field area of the airport with a dog or other animal, other than guide dogs which may be permitted for appropriate purposes, and animals to be transported by air, which must be restrained by leash or properly confined. It shall be the responsibility of any person entering the airport with an animal permitted under this article to clean up or pay for the cleanup of any litter or other damage caused by that animal.
- B. It shall be unlawful for any person, other than in justifiable self-defense, to willfully or maliciously beat, kick, strike, mutilate, injure, disable, kill or unwarrantably interfere with any dog used by the Police Department while such dog is being used in the performance of the functions or duties of such department.

§ 705-22. Loitering.

No persons shall loiter or loaf on any part of the airport or airport premises without a lawful purpose or reason for their presence.

§ 705-23. Smoking.

- A. No person may make in a public place within the terminal building except in areas approved by the Director and so designated by approved signs.
- B. Where a smoking area is designated, existing physical barriers and ventilation systems shall be used to minimize smoke in adjacent nonsmoking areas. This provision shall not be construed to require the installation of fixed structural or other physical modifications or of new ventilation systems in those areas.
- C. In any private leasehold available to the public, such as a hold room, ticket counter, baggage claim area, restaurant, club or store, it is the responsibility of the tenant or concessionaire to designate areas for smoking and nonsmoking, to the extent possible and to post these areas with approved signs.
- D. In any workplace within the terminal building where there are smokers and nonsmokers, it is the responsibility of employers to develop, implement and post a policy regarding designation of smoking and nonsmoking areas. This policy should provide that any employee has the right to designate his or her work area as nonsmoking and to post appropriate signs provided by the employer.

ARTICLE III
Motor Vehicles

§ 705-24. General rules of operation.

- A. All persons shall at all times heed and comply with directions of police officers indicated by gesture, signal or otherwise and shall further comply with all directions on traffic signs and traffic signal control lights. Directions on such traffic signs may be disregarded only on order of a police officer. In parking areas all persons shall comply with the directions of the police or parking area employees.
- B. Pedestrians shall at all times have the right-of-way over vehicular traffic.
- C. No person operating a motor vehicle on the airport shall fail to give proper turning signals.
- D. No person under the influence of liquor or narcotic drugs shall operate a motor vehicle on the airport.
- E. No person shall operate any motor vehicle on the airport overloaded or carrying more passengers than that for which the vehicle was designed. No persons shall ride the running board, standing upon in the body of moving vehicles or ride on the outside of the body of the vehicle or with arms or legs protruding from the body of the motor vehicles.

§ 705-25. Speed.

No person shall operate a motor vehicle of any kind on the airport in a reckless manner or in excess of the speed limits prescribed by the Department of Aviation. Speed limits shall not exceed 25 miles per hour, and the speed limit shall be 15 miles per hour in ramp, apron, aircraft parking, hangar and service station areas, and in areas where such speed limit is posted.

§ 705-26. Repair of motor vehicles.

No person shall clean or make any repairs to motor vehicles anywhere on the airport other than in designated shop areas, except those minor repairs necessary to move vehicles from the airport; nor shall any person, except as provided in § 705-28 of this article, move, interfere or tamper with any motor vehicle, or put in motion the engine, or take, or use any motor vehicle part, instrument or tool thereof, without the permission of the owner or satisfactory evidence of the right to do so duly presented to the Director.

§ 705-27. Buses and other passenger carriers.

No carrier by motor bus for hire, or other vehicle carrying passengers as a business or commercial venture shall load or unload passengers at the airport in any place other than that designated by the Director; nor shall any such conveyance be operated to pick up passengers at or on the airport without a contract with the County or without the express approval of the Director.

§ 705-28. Moving of vehicles.

The Director or police officers shall have the authority to tow or otherwise move motor vehicles which are parked by their owners or operators on the airport in violation of this article or in violation of signs posted by the Department of Aviation or whenever it is determined by the Director that such motor vehicles so parked constitute a nuisance, hazard or obstruction. The Director shall have the authority to make a reasonable charge against the owner or operator of such vehicle for towing or moving service and storage, and to enforce such charge by a lien upon the vehicle.

§ 705-29. Parking.

No persons shall park a motor vehicle on the airport other than in the areas specifically established for parking. No persons shall abandon any motor vehicle on the airport, or park in a space marked off for the parking of vehicles in such a manner as to occupy part of another marked space. No persons shall park any motor vehicle for a period in excess of the time limit prescribed for the particular parking area, nor shall any person park any motor vehicle in any restricted or reserved areas. In this section, "persons" are defined as owners, operators or lessees of any motor vehicle.

§ 705-30. Vehicle Code.

Such provisions of the Pennsylvania Vehicle Code, Act of June 17, 1976, P.L. 162, as amended, Title 75 P.S. § 101 et seq., as do not conflict with this article, are hereby declared to be in effect in and on the airport and on all streets, drives and roadways thereof with like effect as if set forth herein in full, and the traffic rules and regulations set forth herein are in addition to and supplement the Vehicle Code.

§ 705-31. Metered parking.

- A. No person shall park a motor vehicle in a metered parking space on the airport without depositing in the parking meter controlling that space the required amount of money in United States coins for the time and at the rates stated on the meter. If, during the time the motor vehicle is parked in the space controlled by the meter, the meter shows that there is an overtime violation, the owner, or other operator of the motor vehicle, is in violation of this article unless he shows that the meter was not working properly.
- B. No person shall deposit or cause to be deposited in a parking meter additional coins for the purpose of increasing or extending the parking time of any vehicles beyond the legal parking time which has been established for the parking space controlled by the meter.
- C. No person shall deposit or cause to be deposited in any parking meter any slugs, device or substitute for any coins of the United States.
- D. No person shall deface, injure, tamper with, open or wilfully break, destroy or impair the usefulness of any parking meter on the airport.

ARTICLE IV
Definitions

§ 705-32. Words defined.

As used in this Part 2, the following terms shall have the meanings indicated:

AIRPORT — As the case may be, the Pittsburgh International Airport located in Moon and Findlay Townships, County of Allegheny, Pennsylvania and the County Airport, located in West Mifflin Borough, County of Allegheny, Pennsylvania. The term shall include all land and buildings owned by the County forming a part of and appurtenant to the respective airport.

DIRECTOR — The person from time to time designated by the Board of County Commissioners as the Director of the Department of Aviation of Allegheny County, or his designee.

PERSON — Every natural person, firm, copartnership, association or corporation.

POLICE — Police officers employed by the County of Allegheny under the Bureau of Police.

PUBLIC PLACE — Any lobby, rotunda, corridor, hallway, elevator, escalator, stairway, restroom, lounge or other nonleased space maintained exclusively by the County of Allegheny.

SMOKING — The possession of a lighted cigarette, lighted cigar, lighted pipe or any other lighted tobacco product.

TERMINAL BUILDING — The terminal building at the Pittsburgh International Airport or the administration building at the Allegheny County Airport, as the case maybe. The term shall include all parts of the building, both public and private areas, and areas leased to or occupied by others as well as areas under the direct control of County.

ARTICLE V
Penalties

§ 705-33. Violations and penalties.

- A. Any person violating any of the provisions of this Part 2, except the provisions of § 705-31A, shall upon conviction thereof in a summary proceeding, be sentenced to pay a fine not in excess of \$100 to be paid to the use of the County with costs of prosecution, or to undergo imprisonment in the County Jail for not more than 30 days, or both.
- B. Any person violating any of the provisions of § 705-31A or B of this Part 2 shall, upon conviction thereof in a summary proceeding, be sentenced to pay a fine of \$5, to be paid to the use of the County, plus costs of prosecution, or in default thereof to undergo imprisonment in the County Jail for not more than five days; provided, however, that if any person receiving a ticket for such violation shall, within one hour of the time of violation indicated on said ticket deposit said ticket together with a courtesy fine of \$2 in a "Courtesy Fine Box," provided by the County in the vicinity of the metered parking area, such person shall incur no further penalty and no information shall be filed.
- C. Each violation hereunder shall constitute a separate offense subject to the penalties outlined in the preceding section.

Part 3
Pittsburgh International Airport
[Adopted 5-26-1995]

ARTICLE VI
Definitions

§ 705-34. Terms defined.

As used in this Part 3, the following terms shall have the meanings indicated:

AIRCRAFT — Any contrivance used or designated for navigation of, or flight in, or ascent into, the air, except a parachute or other contrivance designed and used primarily as safety equipment.

AIRLINE — All airlines using the airport without having a lease or operating agreement with the County of Allegheny.

AIR OPERATIONS AREA — All runways, taxiways, extended safety areas, ramps and parking areas utilized for the movement of aircraft.

AIRPORT — The Pittsburgh International Airport.

APPLICANT — An individual, group, organization or members and representatives thereof, seeking a permit under this Part 3.

APRON — The area of the airport immediately in front of the entrance of or hangar or aircraft shelter used for the loading, unloading, servicing or parking of aircraft.

AVI — The automated vehicle identification system used at the airport to monitor ground transportation vehicles.

BOARD OF COUNTY COMMISSIONERS — Such public officials and public bodies as may by operation of law succeed to any of the rights, powers or duties which as of the date of enactment of this Part 3 lawfully reside in the Board of County Commissioners of the County.

BOOTH — Any stall, stand, counter, table or other temporary structure provided and approved by the Director.

BUSINESS or COMMERCIAL ACTIVITY — All forms of communication whose primary purpose is the advertising or sale of a product or service for profit.

CONTROL TOWER — The air traffic control facility located at the airport, and operated by the Federal Aviation Administration.

COUNTY — The County of Allegheny.

CURB AREA — Any part of the airport curb designated by the Director for the staging of ground transportation vehicles.

DESIGNATED AREA — Those areas specified by the Director where solicitation activities are permitted.

DIRECTOR — The Director of the County's Department of Aviation and such other persons as from time to time may be authorized by the Board of County Commissioners or by the Director to act for the Director.

DISORDERLY CONDUCT — To intentionally cause public inconvenience, annoyance, alarm or recklessly create a risk thereof.

FIREARM — Any weapon which will or is designed to, or may readily be converted to expel a projectile

by the action of an explosive.

FIXED RATE SPACE — That space on the mezzanine and second floors of the present terminal complex occupied by airline.

GAMBLING — To stake money or any other thing of value upon an uncertain event.

GROUND TRANSPORTATION SERVICE — The regular transportation by ground transportation vehicles of persons or baggage at or from the airport or between the airport and a point or points situated off airport premises.

GROUND TRANSPORTATION VEHICLE — Any automobile, van, cab, station wagon, bus, limousine, courtesy vehicle or other motor vehicle regularly operated for the commercial transportation of persons or baggage at or from the airport or between the airport and a point situated off airport premises.

HOLDING LOT — A discrete portion of an area, assigned by the Director to a particular permittee for the parking of a ground transportation vehicle owned or operated by that permittee.

ITINERANT AIRCRAFT — Any aircraft using the airport, which aircraft are not operated as part of any airline.

ITINERANT AIRLINE — Any airline using the airport on an irregular basis and not pursuant to a schedule published in the official airline guide, and not occupying space in the main terminal complex on a regular basis.

JOINT USE SPACE — That space in the present terminal complex in which airline has joint utilization rights with other users.

LANDSIDE OPERATIONS AREA — All roads or property adjacent to the landside terminal building that are open to the public for use.

LOITERING — To congregate, linger or delay, to be slow in moving or to wander idly.

MAINTENANCE AND OPERATION (M&O) RATE SPACE — That space occupied by airlines which was previously constructed or is hereafter constructed as additions to the present terminal complex directly by an airline or space previously constructed or hereafter constructed as additions to the present terminal complex by County, but for which an airline has advanced to County cash for the payment of the construction costs of said space.

MAXIMUM GROSS LANDED WEIGHT — The maximum weight, expressed in one-thousand-pound units, at which an aircraft is authorized to land at the airport.

MOTOR VEHICLE — A self-propelled device, in, upon or by which a person or property may be transported, carried or otherwise moved from point to point, except aircraft or a device which is propelled solely by human power.

MOTOR VEHICLE CODE — The Pennsylvania Motor Vehicle Code, Act of June 17, 1976, P.L. 162, as amended, Title 75 Pa.C.S. § 101 et seq.

OCCUPANCY — That any occupancy, possession or use of the facilities at the airport shall be limited to a "tenancy at will."

PERMITTEE — Any person who has been issued a permit by the Director to operate a ground transportation vehicle pursuant to this Part 3.

PERSON — Any individual, firm, partnership, corporation, company, association or body politic and includes any trustee, receiver, committee, assignee or other representative or employee thereof.

PICKET — To walk or stand while carrying a sign.

PICKUP AND DISCHARGE AREA — Any part of the airport designated by the Director for the pickup or discharge of passengers or baggage into or from ground transportation vehicle. Nothing in this Part 3 shall be construed to preclude the Director from designating certain areas for pickup and others for discharge, or from designating certain areas for passengers and others for baggage.

PITTSBURGH INTERNATIONAL AIRPORT ENGINEERING AND TRAFFIC STUDY — The study required by the Pennsylvania Consolidated Statutes, Title 75 Vehicles (Vehicle Code), §§ 6105 and 6109(E), dated February, 1995, prepared by Michael Baker, Jr., Inc., which is incorporated herein and made a part of this Part 3.

PREFERENTIAL USE SPACE — That space in the present terminal in which airline has priority in use over other airlines or users.

REGULAR RATE SPACE — All that space in the present terminal complex leased to an airline other than airline fixed rate space and airline M&O rate space.

RESIDENT AIRLINE — An airline using the airport on a regularly scheduled basis and occupying space in the present terminal complex.

SMOKING — The possession of a lighted cigarette, cigar, pipe or other device containing a tobacco product or illegal drug.

SOLICITATION — To directly or indirectly, actively or passively, ask, request, seek or try to obtain contributions.

WEAPON — Anything readily capable of lethal use and possessed under circumstances not manifestly appropriate for the lawful uses which it may have.

ARTICLE VII
General Conduct

§ 705-35. Disorderly conduct.

Disorderly conduct. In order to ensure the safe and proper functioning of the Pittsburgh International Airport, no person shall:

- A. Be or become drunk or intoxicated.
- B. Commit any obscene or indecent act.
- C. Engage in any fighting, threatening, violent or tumultuous behavior.
- D. Make unreasonable noise.
- E. Use obscene language or make any obscene gestures.
- F. Create a hazardous or physically offensive condition by any act which serves no legitimate purpose of the actor.

§ 705-36. Gambling.

No person shall engage in or conduct any form of gambling or operate any gambling devices anywhere on the premises of the airport, other than the Pennsylvania Lottery, or any other forms authorized by statute.

§ 705-37. Sanitation and environmental pollution.

- A. All persons, while on airport property, shall conduct their activities in such a manner so as not to cause any littering or any other form of environmental pollution.
- B. To further carry out the above, no person shall:
 - (1) Dispose of any garbage, papers, refuse or other forms of trash, except in the receptacles provided for, that purpose.
 - (2) Use a restroom, toilet or lavatory facility at the airport other than in a clean and sanitary manner.
 - (3) Eat food or drink beverages in any area other than in the areas designated for such activities.
 - (4) Place any type of liquid in the storm drains or the sanitary sewer system at the airport which will damage them or will result in water pollution.
 - (5) Unreasonably or unnecessarily cause any smoke, dust, fumes, gases or any other matter to be emitted into the atmosphere.

§ 705-38. Preservation of property.

- A. No person shall destroy, deface or disturb in any way, any building, sign, equipment, marker or other structure, tree, flower, lawn or other property on the airport premises.
- B. No person shall alter, add to or erect any building or sign, or make any excavations on airport property without prior permission from the Director.
- C. No person shall travel upon the airport premises other than on the roads, sidewalks or other rights-of-

way designated for such purpose.

- D. No person shall block any hallway, corridor or passageway so as to impede its normal and proper use.

§ 705-39. Weapons and firearms.

- A. No person, except law enforcement officers, post office and custom officials, or members of the Armed Forces of the United States on active duty, shall carry any weapon, firearm, explosive or inflammable material on the airport premises except by specific direction of the Director, the Superintendent of Police or their designees.
- B. No person shall transport any weapon or firearm except when it is properly enclosed for shipment and is not in the person's manual possession.
- C. No person shall discharge any weapon or firearm at the airport except in the performance of official duties requiring the discharge thereof.

§ 705-40. Interfering or tampering with aircraft.

No person shall interfere or tamper with any aircraft, or put in motion the engine of such aircraft, or put in motion the engine of such aircraft, or use or remove any aircraft, aircraft parts, instruments or tools without the permission of the owner or by specific direction of the Director.

§ 705-41. Restricted areas.

- A. No person shall enter any restricted area except as may be permitted by this Part 3. Restricted areas include the air operations area, the Federal Aviation Agency offices and tower, the utility and service areas, areas leased to tenants and other areas specifically designated by appropriate signs.
- B. Entry into a restricted area shall only be made in accordance with prevailing security procedures established by the Director and/or FAA.

§ 705-42. Commercial photography.

No person shall take still, motion or sound pictures for commercial purposes on the airport, without the permission of the Director. Accredited news, newsreel or television cameramen shall secure clearance for their activities from the office of the Director to insure compliance with applicable federal, state or local regulations.

§ 705-43. Use of roads and walks.

- A. No person shall travel on the airport other than on the roads, walks, walkways, driveways or places provided for the particular class of traffic.
- B. No person shall occupy the roads, walks, walkways or driveways in such a manner as to hinder or obstruct their proper use.

§ 705-44. Animals.

- A. No person shall enter any part of the airport or terminal building with any domestic animal except where the animal is properly restrained by leash or properly confined for air travel, or where the animal is a dog used by blind persons or the Allegheny County Police Department.

- B. It shall be the responsibility of any person entering the airport with an animal to clean up and/or pay for the cleanup of any defecation or other damage caused by the animal.
- C. No person shall permit any wild animal under his control or custody to enter the airport except where such animals are to be or have been transported by air and are properly confined for air travel.
- D. It shall be unlawful for any person, other than in justifiable self-defense, to willfully or maliciously beat, kick, strike, mutilate, injure, disable, kill or unwarrantably interfere with any dog used by the Allegheny County Police Department while such dog is being used in the performance of the functions and duties of such Department.

§ 705-45. Loitering.

No person shall loiter on any part of the airport or airport premises without a lawful purpose.

§ 705-46. Smoking.

- A. No person shall smoke in any public place within the terminal building except in areas approved by the Director and so designated by approved signs, under provisions of Act 168 of 1988.
- B. All private leaseholds available to the public shall comply with the Clean Indoor Air Act by designating and posting smoking and nonsmoking areas as required by the Act.
- C. In any workplace within the terminal building where there are smokers and nonsmokers, it is the responsibility of employers to develop, implement and post a policy regarding designation of smoking and nonsmoking areas.
- D. A violation of this section shall be punishable by a civil fine of not more than \$50.

§ 705-47. Violations and penalties.

- A. Any person who violates any of the regulations of this article, other than § 705-22 above, shall be subject to one or both of the following penalties: upon conviction of the summary proceeding, violators shall:
 - (1) Undergo imprisonment in the County jail for not more than 30 days; and/or
 - (2) Be sentenced to pay a fine, to be paid to the use of the County with costs of prosecutions, not less than \$25 nor to exceed \$100 for each conviction thereof.
- B. The Board of County Commissioners may also prescribe fines and penalties, not exceeding \$500, for the violation of County ordinances, which fines and penalties may be collected by suit brought in the name of the County in like manner as debts of like amount may be used for.
- C. Each of the subsections contained in this article shall constitute a separate offense subject to the penalties outlined in Subsections A and B of this section.

ARTICLE VIII
Communication

§ 705-48. Purpose.

The terms and conditions set forth in this article are necessary for the accomplishment of the following purposes:

- A. To ensure that persons seeking to exercise their constitutional freedom of expression can communicate with the users of the airport.
- B. To ensure police protection of the persons exercising their constitutional freedoms.
- C. To ensure that persons and organizations properly authorized to engage in authorized activities have adequate exposure to the traveling public.
- D. To restrict such activities to public areas of the airport.
- E. To protect users of the airport from repeated communications or encounters which might constitute harassment or intimidation.
- F. To ensure the free and orderly flow of pedestrian traffic through the airport.
- G. To ensure that these activities do not result in the interference with the transportation or business functions of the airport.

§ 705-49. Business or commercial activities.

- A. The provisions contained in this article shall not apply to individuals wishing to conduct business or commercial activities in, about or within the limits of the airport.
- B. Any person or organization desiring to engage in any business or commercial activities in, about or within the limits of the airport must comply with the regulations and procedures established by the Director from time to time for purposes of regulating the time, place and manner of such activities.

§ 705-50. Nonbusiness/Commercial activities.

Any person or organization desiring to distribute literature, exchange information, solicit funds or picket at the airport shall first obtain a written permit from the Director.

§ 705-51. Permit transferability.

Permits granted pursuant to the rules of this article are not transferable. No person or organization shall conduct any form of solicitation regulated under this article unless the person or organization has first obtained a permit.

§ 705-52. Permit denial, suspension or cancellation.

A permit may be denied, suspended or canceled upon a showing that:

- A. One or more of the statements contained in the permit application is not true.
- B. The applicant has failed to supply all of the information required by the permit application.

- C. The applicant designated to participate in the permit activities is presently engaged in a fraudulent or criminal transaction or enterprise.
- D. The applicant has violated a material provision of this article.
- E. The applicant is involved in an activity that adversely affects the health or safety of the public.

§ 705-53. Permit denial procedure.

- A. In the event that a permit is revoked or suspended, a new permit may not be issued to the person or organization for six months following the date of the revocation or suspension.
- B. The Director shall notify the permit holder, in writing, of any revocation or suspension of his or her permit.

ARTICLE IX
Motor Vehicles

§ 705-54. Purpose; applicability.

- A. The purpose of this article is to establish rules regulating traffic and traffic control on airport roads and property in order to make such areas safe for those operating motor vehicles at the airport. No person shall operate any vehicle on the airport other than in accordance with these rules and regulations, except when given special authorization and instruction by the Director or his designated representative.
- B. These rules and regulations shall remain in full force and effect until such time as revised.

§ 705-55. Landside operations area.

- A. The Pennsylvania Vehicle Code (Title 75) shall govern traffic control on the airport's landside operations area, as well as all roads within its authority. This article is designed to work together with the Vehicle Code with regard to the landside operations area. Should a provision of this article dealing with the landside operations area conflict with the Vehicle Code, the Vehicle Code shall apply.
- B. No person shall park a motor vehicle on the airport other than in the areas specifically established for parking. No person shall park any motor vehicle on the airport in a space marked off for the parking of vehicles in such a manner as to occupy a part of another marked space. No person shall park any motor vehicle for a period in excess of the time limit prescribed for the particular parking area, nor shall any person park any motor vehicle in any prohibited, restricted or reserved area (Pittsburgh International Airport, "Engineering and Traffic Study").
- C. In parking areas, no person shall disregard or fail to comply with the directions of the police or parking area employees. No person shall disregard or fail to comply with any directions of a police officer indicated by gesture, signal or otherwise, or disregard or fail to comply with any directions on traffic signs and traffic signal control lights. Directions on such traffic signs may be disregarded only on order of a police officer.

§ 705-56. Air Operations Area (AOA).

- A. Only motor vehicles in the following nine classes shall be authorized to operate on the AOA. No other motor vehicles shall operate on the AOA.
 - (1) Airport ambulances.
 - (2) Airport fire and rescue vehicles.
 - (3) Allegheny County Department of Aviation operations vehicles.
 - (4) Allegheny County Police vehicles.
 - (5) Airfield maintenance vehicles.
 - (6) Aircraft support vehicles.
 - (7) FAA field vehicles.
 - (8) Contractors' vehicles.

- (9) Any other vehicle authorized by the Director.
- B. No person shall operate a motor vehicle in any of the above classes unless said operator possesses a valid state driver's license for that particular class of vehicle.
- C. Motor vehicle operators must have a valid and properly coded Department of Aviation security badge visibly displayed at all times or be under the constant escort of a properly badged person while in the AOA.
- D. The Department of Aviation reserves the right to withdraw permission for any individual to operate a motor vehicle on the AOA if such action is deemed necessary to maintain safety and order.
- E. Aircraft always have the right-of-way in the AOA. No motor vehicle operator shall be permitted to drive between an aircraft, passenger lanes or building except those vehicles servicing the aircraft or responding emergency vehicles. Vehicles needing to traverse an AOA ramp area shall utilize the right side of designated vehicle roadways at all times and obey all posted signage. All vehicles crossing or entering traffic lanes shall yield to those vehicles already in the lane before proceeding.
- F. No person shall operate a motor vehicle in the AOA in excess of 15 miles per hour, except for emergency vehicles or where otherwise posted (Pittsburgh International Airport, "Engineering and Traffic Study"). No person shall operate a motor vehicle around an aircraft (whether parked or taxiing) in excess of five miles per hour.
- G. No person operating an airline towing vehicle shall tow more than four carts or container carriers.
- H. No contractor equipment shall be parked in any area other than a properly designated area.
- I. No person shall do any of the following without a guide person:
- (1) Back up a truck or other vehicle in close proximity to other equipment vehicles, fencing, walls or structure.
 - (2) Back up a fuel tank truck.
 - (3) Back up a motor vehicle whenever the operator's vision is impaired.
- J. Any motor vehicle operator, whose vehicle becomes disabled or becomes out of service on the AOA, must:
- (1) Turn on the vehicle's warning lights; and
 - (2) Immediately notify the airport operations section.
- K. All vehicles, whether in marked traffic lanes or not, shall yield to aircraft pushbacks or power backs from gates or other parking positions.
- L. In potential conflict situations between approaching/overtaking aircraft support vehicles, right-of-way shall be determined by the following priority list. No person operating a motor vehicle shall circumvent the following procedure.
- (1) Emergency vehicles.
 - (2) Fuel trucks.
 - (3) Passenger buses.

- (4) Baggage/cargo trains.
- (5) All other aircraft service equipment.
- M. No ground vehicles shall proceed onto a taxiway or runway unless they have clearance from the FAA control tower, received either directly or through escort, on the ground control frequency.
- N. No person shall operate a motor vehicle on a runway or taxiway without the express prior approval of the Department of Aviation. Such access shall only be based on official need, and not be automatically granted based on access granted to the terminal, cargo or hangar ramps. This would include, but not be limited to, airport/tenant contractors and aircraft support vehicles such as deicing equipment and passenger shuttle buses.
- O. Smoking is prohibited at any time either in or out of vehicles or anywhere on the AOA.
- P. Fueling vehicles must always be properly grounded during fueling operations.
- Q. No person shall disregard or fail to comply with any directions of a police officer indicated by gesture, signal or otherwise, or disregard or fail to comply with any directions on traffic signs and traffic control lights. Directions on such traffic signs may be disregarded only on order of a police officer.
- R. All violations shall be reported to the responsible airline, tenant or contractor. The airlines, tenants and contractors shall have primary responsibility to assure that their employees adhere to the rules prescribed herein. The Department of Aviation reserves the right to withdraw permission for any individual to operate a vehicle on the AOA if such action is deemed necessary to maintain safety and order.
- S. Those operating a motor vehicle shall not allow any passenger in a vehicle other than authorized personnel. All passenger or vehicle escorts must comply with the procedures established in the FAA-approved airport security program.

§ 705-57. Public and private parking areas.

- A. No person shall drive a vehicle at a speed greater than is reasonable and prudent under the conditions and having regard to the actual and potential hazards then existing, nor at a speed greater than will permit the driver to bring his vehicle to a stop within the assured clear distance ahead. Consistent with the foregoing, every person shall drive at a safe and appropriate speed when approaching and crossing an intersection or railroad grade crossing, when approaching and going around curves, when approaching a hill crest, when traveling upon any narrow or winding roadway and when special hazards exist with respect to pedestrians or other traffic or by reason of weather or highway conditions.
- B. Any person who drives a vehicle in careless disregard for the safety of persons or property is guilty of careless driving, a summary offense.
- C. No person shall, without lawful authority, attempt to or in fact, alter, twist, obstruct, deface, injure, knock down, remove or interfere with the effective operation of any official traffic-control device, or any inscription, shield or insignia thereon or any other part thereof.
- D. Abandonment on public or private property. No person shall abandon a vehicle upon any public or private property without the express or implied consent of the owner or person in lawful possession or control of the property.

§ 705-58. Regulations applicable to both AOA and landside areas.

- A. The Director is authorized to close or restrict the use of all airport roadways to vehicular traffic in the interest of public safety.
- B. Airport ambulances, fire and rescue vehicles, Allegheny County Police units and the Department of Aviation vehicles are designated emergency vehicles, with right-of-way priority over all other ground vehicles. No motor vehicle operator shall block any storage garage entrance/exit or restrict the movement or operation of these vehicles.
- C. Written reports of all vehicular incidents that result in damage to airport property, personal injury or the towing of either vehicle must be reported to the airport safety/security manager and the Allegheny County Police within 24 hours. If an aircraft is involved, the airport operations office must be notified immediately.
- D. No person shall clean or make repairs to motor vehicles anywhere on the airport other than in designated areas, except those minor repairs necessary to move such motor vehicles from the airport.
- E. The Director or the Allegheny County Police shall have the authority to tow or otherwise move motor vehicles which are parked or stopped on the airport in violation of signs posted by the Department of Aviation. The Director shall have the authority to charge the operator of such vehicle for towing or moving service and storage and to enforce such charge by a lien upon the vehicle, for that class of vehicle.
- F. No person shall operate a motor vehicle unless such persons possesses a valid state driving license issued by the state in which such person is employed or resides, for that class of vehicle.
- G. No person shall operate a motor vehicle in a reckless manner.
- H. Special one-time parking requirements must be coordinated in advance with the Allegheny County Police (for landside area) or the Department of Aviation safety/security manager (for the AOA).
- I. Written reports of all vehicular incidents or accidents taking place in common-use areas, or that result in damage to airport property, personal injury or the towing of either vehicle must be reported to the airport safety/security manager and the Allegheny County Police within 24 hours. If an aircraft is involved, the airport operations office must be notified immediately.
- J. No person shall deface, injure, tamper with, open or willfully break, destroy or impair the usefulness of any parking lot equipment or facility on the airport.
- K. The airline employees' parking lot and airline/tenant leased areas designated for parking are the only areas legally available for employee or company vehicle/equipment parking.
- L. No person under the influence of liquor or narcotic drugs shall operate a motor vehicle on the airport.
- M. No person shall operate any gasoline-powered vehicle in any of the airport service tunnels where prohibited by sign.

§ 705-59. Airport vehicle standards.

- A. Any person who operates an airport conveyancing vehicle, except aircraft, used to transport persons, cargo and/or equipment shall adhere to the following:
 - (1) No person shall operate a truck, tractor, tug or other self-propelled equipment during the hours

of darkness where a headlight or taillight of such vehicle is not functioning.

- (2) No person shall operate any vehicle in the FAA tower-controlled movement area beyond the vehicle driving lines during the hours of darkness, unless such vehicle is equipped and has in use, flashing or revolving beacons able to be seen by the control tower and ramp control at all times.
- (3) No person shall operate any vehicle and equipment exceeding seven feet in width, unless such vehicle is equipped and has in use, a flashing beacon and flashing front, tail and clearance lights, to be operative at all times on airport roads.
- (4) No person shall operate a cart or other equipment unless it is equipped with:
 - (a) A proper audio warning system; and
 - (b) A lighting system, or in lieu thereof, reflectors and reflectorized tape on the front, rear and side thereof.
- (5) No person shall operate any vehicle, which is transporting flammable or combustible liquids, exclusive of flammable or combustible liquids in a vehicle's internal fuel tank or a small portable container, unless such vehicle contains one currently inspected fire extinguisher of at least 20 pounds appropriate to the class of material being transported.
- (6) No person shall operate a vehicle requiring side and roof numbers unless such side numbers are no less than eight inches high and such roof numbers are no less than 12 inches high.
- (7) The Allegheny County Police, or upon notification from the Department of Aviation, shall have the authority to remove from service any vehicle not in compliance with the above standards.

B. The following motor vehicles that operate at the airport must meet the following requirements:

- (1) No person shall operate an ambulance, unless such vehicle is clearly identified, marked and equipped with red flashing beacons.
- (2) No person shall operate a fire and rescue vehicle, unless such vehicle is chrome yellow in color, numbered as required, and equipped with flashing red beacons.
- (3) No person shall operate an Allegheny County Department of Aviation operations vehicle, unless such vehicle is marked and identified as belonging to the Department of Aviation and equipped with flashing yellow beacons as required.
- (4) No person shall operate an Allegheny County Police vehicle, unless such vehicle bears the proper markings as adopted by the County for Police vehicles, i.e., color, indicator lights, etc. The above shall not apply to unmarked surveillance vehicles.
- (5) No person shall operate an airfield maintenance vehicle, unless such vehicle is marked to be identified as Department of Aviation maintenance vehicles, solid yellow in color, numbered and equipped with flashing yellow beacons.
- (6) No person shall operate an aircraft support vehicle, unless such vehicle is marked with identifying symbols and/or the name of the company owning the vehicles and have flashing yellow beacons.
- (7) No person shall operate an FAA field vehicle, unless such vehicle is clearly marked to be

identified as an official US Government vehicle and equipped with flashing yellow beacons.

- (8) No person shall operate a contractor vehicle in the AOA, unless such vehicle displays a valid operating permit and a three-foot square flag of checkered pattern of international orange and white colors on each side. Flags shall be attached so as to be visible from the control tower.

§ 705-60. Parking garage.

- A. No person shall operate a motor vehicle in excess of 10 miles per hour in a parking garage (Pittsburgh International Airport, "Engineering and Traffic Study").
- B. Rental car return queuing must allow at least one traffic lane to be passable in all aisles.

§ 705-61. Traffic citations.

Allegheny County police officers are authorized to issue traffic citations to motor vehicle operators who violate any regulation of this article.

§ 705-62. Violations and penalties.

- A. Any person who violates any of the regulations of this article shall be subjected to one or both of the following penalties: upon conviction of the summary proceeding, violators shall:
- (1) Undergo imprisonment in the County jail for not more than 30 days; and/ or
 - (2) Be sentenced to pay a fine, to be paid to the use of the County with costs of prosecutions, not less than \$25 nor to exceed \$100 for each conviction thereof.
- B. The Board of County Commissioners may also prescribe fines and penalties, not to exceed \$500, for the violation of County ordinances, which fines and penalties may be collected by suit brought in the name of the County in like manner as debts of like amount may be used for.
- C. Each of the sections contained in this article shall constitute a separate offense subject to the penalties outlined in Subsections A and B of this section.

ARTICLE X
Fire and Safety

§ 705-63. Purpose.

The purpose of this article is to set forth the rules and regulations regarding fire and safety to insure that all persons using the airport shall exercise the utmost care to guard against fire and injury to persons or property.

§ 705-64. Adoption of Fire Prevention Code.

The BOCA National Fire Prevention Code, Ninth Edition, 1993, as may be hereinafter amended, as published by the Building Officials and Code Administrators International, Inc., is hereby adopted as the Fire Prevention Code of Pittsburgh International Airport, for the control of buildings, structures and premises as herein provided; and each and all of the regulations, provisions, conditions and terms of said BOCA National Fire Prevention Code, are hereby referred to, adopted and made a part hereof as if fully set out in this article.

§ 705-65. Fire control measures.

- A. Authority at fires and other emergencies. The Fire Chief, Allegheny County Bureau of Fire, or duly authorized representatives, as may be in charge at the scene of a fire or other emergency involving the protection of life and property, is empowered to direct such operations as may be necessary to extinguish or control any suspected or reported fires, gas leaks or other hazardous conditions or situations or of taking any other action necessary in the reasonable performance of their duty. Said official may prohibit any person, vehicle or object from approaching the scene and may remove or cause to be removed from the scene any person, vehicle or object which may impede or interfere with the operations of the Fire Department. Said official may remove or cause to be removed any person, vehicle or object from hazardous areas. All persons ordered to leave a hazardous area shall do so immediately and shall not re-enter the area until authorized to do so by said duly authorized official.
- B. Interference with Fire Department operations. It shall be unlawful to interfere with, attempt to interfere with, conspire to interfere with, obstruct or restrict the mobility of or block the path of travel of any Fire Department emergency vehicle in any way, or to interfere with, attempt to interfere with, conspire to interfere with, obstruct or hamper any Fire Department operation.
- C. Compliance with orders. A person shall not willfully fail or refuse to comply with any lawful order or direction of the Fire Chief or to interfere with the compliance attempts of another individual.
- D. Vehicles crossing fire hose. A vehicle shall not be driven or propelled over any unprotected fire hose of the Fire Department when laid down on any street, alleyway, private drive or any other vehicle roadway without the consent of the Fire Chief in command of said operation.
- E. Definition of authorized emergency vehicle. Authorized emergency vehicles shall be restricted to those which are defined and authorized under the laws of the State of Pennsylvania.
- F. Operation of vehicles on approach of authorized emergency vehicles. Upon the approach of any authorized emergency vehicle, giving audible and visual signal, the operator of every other vehicle shall immediately drive the same to a position as near as possible and parallel to the right-hand edge or curb of the street or roadway, clear of any intersection and shall stop and remain in such position until the authorized emergency vehicle or vehicles shall have passed, unless otherwise directed by the Fire Chief or a police officer.

- G. Vehicles following fire apparatus. It shall be unlawful for the operator of any vehicle, other than one on official business, to follow closer than 300 feet to any fire apparatus traveling in response to a fire alarm.
- H. Unlawful boarding or tampering with Fire Department emergency equipment. A person shall not without proper authorization from the Fire Chief in charge of said Fire Department emergency equipment, cling to, attach himself to, climb upon or into, board or swing upon any Fire Department emergency vehicle, whether the same is in motion or at rest, or sound the siren, horn, bell or other sound-producing device thereon, or to manipulate or tamper with, or attempt to manipulate or tamper with levers, valves, switches, starting devices, brakes, pumps or any equipment or protective clothing on, or a part of, any Fire Department emergency vehicle.
- I. Damage or injury to Fire Department equipment or personnel. It shall be unlawful for any person to damage or deface or attempt to conspire to damage or deface any Fire Department emergency vehicle at any time or to injure, or attempt or conspire to injure, Fire Department personnel while performing departmental duties.
- J. Emergency vehicle operation. The driver of any emergency vehicle, as defined in Article VII of this Part 3, shall not sound the siren thereon or have the front red lights on or disobey any existing traffic regulation, except when said vehicle is responding to, but not upon returning from, a fire. Tactical strategies such as, but not restricted to, "move-ups" do not constitute an emergency call. The driver of an emergency vehicle may:
- (1) Park or stand irrespective of the provisions of existing traffic regulations.
 - (2) Proceed past a red or stop signal or other sign but only after slowing down as may be necessary for safe operation.
 - (3) Exceed the prima facie speed limit so long as the action does not endanger life or property.
 - (4) Disregard regulations governing direction of movement or turning in specified directions.
 - (5) The exemptions herein granted to an emergency vehicle shall apply only when the driver of any such vehicle while in motion sounds audible signal by bell, siren or exhaust whistle as may be reasonably necessary, and when the vehicle is equipped with at least one lighted lamp displaying a red light visible under normal atmospheric conditions from a distance of 500 feet to the front of such vehicle.
- K. Blocking fire hydrants and Fire Department connections. It shall be unlawful to obscure from view, damage, deface, obstruct or restrict the access to any fire hydrant or any Fire Department connection for the pressurization of fire suppression systems, including fire hydrants and Fire Department connections located on public or private streets and access lanes or on private property. If, upon the expiration of the time mentioned in a notice of violation, obstructions or encroachments are not removed, the Fire Chief shall proceed to remove the same. Costs incurred in the performance of necessary work shall be assessed accordingly.
- L. Hydrant use approval. A person shall not use or operate any fire hydrant intended for use of the Fire Department for fire suppression purposes unless such person first secures authorization for such use from the Fire Chief. This subsection shall not apply to the use of such hydrants by a person employed by, and authorized to make such use by, the water company having jurisdiction.
- M. Maintenance of fire suppression equipment. A person shall not obstruct, remove, tamper with or otherwise disturb any fire hydrant or fire appliance required to be installed or maintained under the

provisions of the Fire Prevention Code except for the purpose of extinguishing a fire, training or testing purposes, recharging or making necessary repairs or when permitted by the Fire Prevention Code official. Whenever a fire appliance is removed as herein permitted, it shall be replaced or reinstalled as soon as the purpose for which it was removed has been accomplished. Defective and nonapproved fire appliances or equipment shall be replaced or repaired as directed by the Fire Chief.

- N. Sale of defection fire extinguishers. A person shall not sell, trade, loan or give away any form, type or kind of fire extinguisher which is not approved by the Fire Chief, or which is not in proper working order, or the contents of which do not meet the requirements of the Fire Chief. The requirements of this subsection shall not apply to the sale, trade or exchange or obsolete or damaged equipment for junk when said units are permanently disfigured or marked with a permanent sign identifying the unit as junk.

§ 705-66. Violations and penalties.

- A. Any person who violates any of the regulations of this article shall be subjected to one or both of the following penalties: Upon conviction of the summary proceeding, violators shall:
- (1) Undergo imprisonment in the County jail for not more than 30 days; and/or
 - (2) Be sentenced to pay a fine, to be paid to the use of the County with costs of prosecutions, not less than \$25 nor to exceed \$100 for each conviction thereof.
- B. The Board of County Commissioners may also prescribe fines and penalties, not to exceed \$500, for the violation of County ordinances, which fines and penalties may be collected by suit brought in the name of the County in like manner as debts of like amount may be used for.
- C. Each of the sections contained in this article shall constitute a separate offense subject to the penalties outlined in Subsections A and B of this section.

ARTICLE XI
Ground Transportation
[Added 9-7-1995]

§ 705-67. Purpose.

- A. The purpose of this article is to establish regulations governing ground transportation service at the airport so as to ensure quality service to the public and to provide for the public's welfare and safety.
- B. The airport is financed and managed under policies and practices designated to assure that it will always be self-supporting and will not require the expenditure of local tax funds for its operation, which policies require that the costs and expenses for facilities be paid by the users of such facilities who enjoy the commercial opportunities that such facilities create, and that such users also pay fees for such opportunities appropriate to and commensurate with the type and volume of business potential under leases, concession agreements, or permits.
- C. In order to pay for expenses incurred in the construction and maintenance of airport roadways and to fund airport improvements, to protect the public, to preserve order, to provide for the public health, safety and welfare, to enhance the airport as a public transportation facility, and to protect established sources of revenue to the airport, it is necessary to establish a permit program and fix fees and charges for those persons who do not have a lease or concession agreement with the County and who want the privilege of picking up and discharging passengers and of supplying services to those passengers.

§ 705-68. Ground transportation vehicle guidelines.

The Director of Aviation shall have the authority to establish vehicle guidelines for all persons or corporations who would provide, offer to provide or cause to provide public transportation at Pittsburgh International Airport.

§ 705-69. Ground transportation vehicles and service.

- A. No person shall drive or cause to be driven any ground transportation vehicle upon the premises of the airport, or provide, offer to provide or cause to be provided any ground transportation services to passengers or other persons at the airport unless a written permit has been first obtained for such ground transportation service from the Director, and all fees established in connection with such permit have been paid.
- B. No person shall drive or cause to be driven any ground transportation vehicle upon the premises of the airport, or provide, offer to provide or cause to be provided any ground transportation vehicle service to passengers or other persons at the airport in violation of any of the terms, conditions or other provisions of a permit issued pursuant to this article.
- C. No person shall pick up or discharge passengers or baggage in connection with any ground transportation service, or park any ground transportation vehicle, or engage in any other activity in connection with any ground transportation service, at any location at the airport not expressly designated by the Director for such purpose.
- D. No person shall use any pickup or discharge area, curb area, holding lot, commercial roadway or ground transportation dispatch counter or office for any purpose not directly related to providing ground transportation service.
- E. No person or employee, agent or subcontractor of a permittee shall solicit passengers for

transportation or hold themselves out for hire or engage in any other activity not permitted by the ground transportation guidelines and/or this article issued pursuant thereto.

- F. "Solicitation" means to ask, request or offer to provide transportation of persons or baggage at or from Pittsburgh International Airport to points situated off airport premises whether a fee is requested or not.

§ 705-70. Permit program.

- A. Each person desiring to drive any ground transportation vehicle upon the premises of the airport or to provide any ground transportation service to passengers or other persons at the airport shall first obtain a written permit from the Director. Permit fees and the application process are set forth in separate guidelines established by the Department of Aviation.
- B. The Director shall, within a reasonable time after the receipt of the permit application and fees, issue to the applicant a ground transportation vehicle permit valid for one year or the remaining portion of a year, unless it shall appear that:
- (1) The application is incomplete.
 - (2) The applicant has failed to provide the certificates or other documentary evidence required.
 - (3) The application contains false statements.
 - (4) The permit is sought in furtherance of or in connection with some unlawful enterprise or activity.
 - (5) Due to the nature, size, configuration or other characteristic of the ground transportation vehicle, it can reasonable be expected that the granting of the permit would create a threat to the health or safety of persons or property in or about the airport, or would be likely to interfere with the safe, orderly and expeditious flow of traffic to, from, at or about the airport.
 - (6) The applicant is in violation of any health, safety, insurance, inspection, licensing, certification or other requirements imposed by any governmental agency or authority having jurisdiction.
 - (7) The applicant is in violation of a previously issued ground transportation vehicle permit, or is in breach of a contract with the County.
 - (8) The applicant fails to pay any fines imposed for violation of the ground transportation guidelines established by the Director of Aviation.
 - (9) The applicant fails to charge fares in accordance with published tariff of appropriate regulatory agency.
- C. In the event that a permit application is denied, the Director shall give prompt written notice thereof to the applicant advising of the reason for the denial and shall refund to applicant the permit fee submitted by applicant in connection with the application. The applicant shall have 30 days from the date of denial to appeal such denial to the Board of County Commissioners.
- D. Each permit issued pursuant to this article shall authorize the permittee to use, in common with others so authorized, the commercial roadway, designated curb areas for pick-up and discharge and the use of the designated holding lot as herein provided. All of the foregoing uses shall be subject to the terms, conditions and other provisions of this article.

§ 705-71. Permit conditions.

All permittees shall adhere to the following conditions:

- A. All permits issued pursuant to this article shall be in such form as the Director shall from time to time determine, shall be expressly conditioned upon the permittee's observance of all federal, state, County and municipal laws, ordinances, rules and regulations, and such rules and procedures as may from time to time be established by the Director.
- B. All permittees shall submit to the Director a report of each accident occurring in connection with a permittee's ground transportation service at or from the airport.
- C. All permittees shall promptly deliver to the Director true and correct copies of all renewals, amendments, cancellations or other changes of all certificates of public convenience or similar certificates issued by the Interstate Commerce Commission, the Pennsylvania Public Utility Commission, the Port Authority of Allegheny County or any other Federal, State or municipal governmental agency having jurisdiction over a permittee's transportation activities and authorizing a permittee to engage in the transportation service which permittee provides at or from the airport.
- D. All permittees shall adhere to such additional terms, conditions and other provisions including, but not limited to, insurance and indemnification requirements as the Director may reasonably establish for the public health and safety, the security and good order of the airport, and the expeditious flow of traffic to, from, at, and about the airport.

§ 705-72. Authorized airport areas.

- A. All persons required to operate under a permit shall drive only upon such ways, pick up and discharge passengers only at such locations, park only at such locations and remain at any location only for such period of time, as the Director shall from time to time authorize and determine pursuant to this article.
- B. The Director shall designate a certain area or areas at the airport for use in common by permittees as an area at which permittees may pickup and discharge passengers and baggage. The Director may from time to time change the areas so designated. A permittee may pick up and discharge passengers only at such designated areas.
- C. The Director shall designate a certain area or areas at the airport as a curb area or areas, for the discharge and pick up of passengers only. The Director shall divide the curb area and holding lot into specific portions. A permittee may stage its vehicles only in those areas which are specifically assigned to that permittee by the Director. The Director may from time to time change the areas designated as curb areas and holding lots assigned to a given permittee.
- D. Each applicant shall indicate in its application the number of vehicles which it desires. The Director, in his discretion, may issue a permit for a lesser number of vehicles than requested by an applicant, and may at any time reduce the number of vehicles already authorized to a permittee, based on the total number of spaces available, the number of applications received or anticipated, the needs of the traveling public, and the safety and good order of the airport. In the event that the Director reduces the number of vehicles allotted to a permittee, or issues a permit for fewer vehicles than requested by an applicant, he shall refund the proportionate part of the fee.
- E. The Director may designate a certain office, counter or other area in the airport terminal building for use in common by permittees as a ground transportation service area. The Director may from time to time relocate or redesign such area. The Director may elect to centralize the management and

operation of the common counter or other area. The management and operation may be by the County or by other such persons as the Director shall designate.

- F. If the Director determines that due to the nature, size, shape or other characteristic of any vehicle of any permittee, that vehicle interferes or is likely to interfere with the safe, orderly and expeditious flow of traffic to, from, at or about the airport, then the Director may prohibit that permittee from driving or otherwise using that vehicle at the airport or at a particular part of the airport. In such event the permittee may either utilize a different vehicle, which does not so interfere or discontinue its ground transportation vehicle activities at the airport. In the latter case, County shall refund to the permittee the proportionate part of the fee.

§ 705-73. Ground transportation holding lot.

- A. Permittees may use, in common with others so authorized, the ground transportation holding lot as a temporary hold and parking area only.
- B. This area may not be used as a permanent parking facility for private vehicles of the permittee's employees. No vehicle shall remain in the holding lot area overnight. However, the Director may waive this limitation due to circumstances beyond the permittee's control.
- C. Permittees may only utilize the designated lanes in accordance with the appropriate class of vehicle.

§ 705-74. Ground transportation curb areas.

- A. Permittees shall have the use in common of the curb areas, as authorized by the Director in accordance with the appropriate class of vehicle. Such areas shall only be used for the loading and discharge of passengers.
- B. Vehicles may be left unattended at the curb, in the area designated for their appropriate vehicle. The dwell time in this area may not exceed a period as established by ground transportation guidelines.
- C. Permittees whose vehicles exceed the allotted dwell time shall pay an additional fee as provided for in the ground transportation guidelines.

§ 705-75. Ground transportation service area.

- A. Permittees may use, as a dispatching office, that area designated by the Director as the ground transportation service area.
- B. Permittees shall have the right to use the service area, in common with other approved permittees, with the following guidelines:
- (1) All permittees' use of this area shall be in common with all other approved permittees.
 - (2) Any communication equipment, signage, pamphlets or schedules must be submitted and approved by the Director prior to placement within the service area.
 - (3) Installation of direct phone lines must be approved by the Director.
 - (4) Any attempt to remove, deface or destroy another permittee's sign, schedule or pamphlets or to interfere with another permittee's passengers shall be grounds for revocation of a permittee's right to use the service area and/or operate at the airport.

- (5) Permittees' employees at this counter area should be courteous and professional in appearance at all times.
- C. Permittees shall be required to pay on an annual fee, as set by the Department of Aviation, for use of this area. Fees for permittees approved more than 30 days after the normal due date for payment shall be prorated for the period. In the event a permittee ceases to provide service, there shall be no refund of any amounts due or previously paid.
- D. The Director may elect to centralize the management and operation of the common counter or other area. The cost of management and operation shall be assessed to the permittees on a pro-rata basis.

§ 705-76. Vehicle fees.

- A. All permittees must pay an annual per vehicle fee, established by the Department of Aviation, based upon the type of vehicle they operate.
- B. All permittees must pay a per-trip fee, established by the Department of Aviation, each time a vehicle accesses or re-accesses the commercial roadway system.
- C. All permittees must pay a deposit fee, established by the Department of Aviation, for each vehicle transponder used in the AVI system.
- D. All fees required, except per trip fees, must be paid in full prior to the issuance of a permit and vehicle transponders.
- E. For lost or stolen transponders, a permittee must notify the Department of Aviation and pay an additional deposit fee before a replacement transponder will be provided, as well as the cost for replacement of the same.

§ 705-77. Vehicle identification.

- A. Stickers will be issued to all permittees for immediate and permanent attachment to the passenger side 18 inches to the right of the license plate on the rear bumper of all vehicles operating at, to or from airport. No permittee shall operate a motor vehicle without such a sticker being attached to the vehicle.
- B. Transponders will be issued to all permittees for immediate attachment to the front license plate on the bumper of a permittee's vehicles. Transponders must be installed prior to commencement of operation. No permittee shall operate a motor vehicle without such a transponder being attached to the vehicle.
- C. All vehicles in a permittee's fleet operating at, to or from airport must have permanently affixed exterior signage indicating thereon the name as set forth on the permit application. No permittee shall operate a motor vehicle without such exterior signage affixed to the vehicle.
- D. Permits are granted only for fleet vehicles as used in a permittee's primary business. Employee's personal cars or vehicles not registered in this application may not utilize the commercial roadway or holding lot areas.

§ 705-78. Permit revocation.

- A. The Director may revoke or suspend any ground transportation permit if a permittee:

- (1) Transfers a transponder and/or sticker from the vehicle to which the transponder is assigned.
 - (2) Fails to provide evidence of current insurance coverage as required by the ground transportation guidelines.
 - (3) Leaves any vehicle unattended in any area other than such designated and authorized areas provided for in this article.
 - (4) Fails to report and return a transponder and sticker to the Department of Aviation within 10 days the transfer, sale or lease of vehicle registered with the Department.
 - (5) Utilizes space in the holding lot or curb area other than that area set aside for the appropriate designated vehicle.
 - (6) Fails to provide documentation of vehicle fleet changes as required by the ground transportation guidelines.
 - (7) Routinely fails to operate within the scope of its operating authority.
 - (8) Fails to pay any fines imposed for violation of the ground transportation guidelines.
 - (9) Fails to charge fares in accordance with published tariffs.
- B. The Director of Aviation shall give a permittee written notice of revocation, and the permittee shall have 30 days from the date of revocation to appeal such revocation to the Board of County Commissioners. Such appeal shall be set forth in writing addressed to the County Solicitor, County of Allegheny, Department of Law, Fort Pitt Commons Building, Pittsburgh, PA 15219. A permittee whose permit has been revoked or suspended shall not be entitled to any refund of any permit fee paid hereunder.

§ 705-79. Addition or deletion of vehicle.

- A. If a permittee adds or deletes a vehicle used in the ground transportation service, the permittee must inform the Department of Aviation in writing and provide all other necessary information required by the Department.
- B. When adding a vehicle to the ground transportation service permittee shall contact the Department of Aviation and pay the appropriate fees to the Director.
- C. When deleting a vehicle from the ground transportation service permittee must submit the necessary information in writing to the Department of Aviation along with the sticker and transponder of the vehicle.

§ 705-80. Discontinuance of service.

If permittee shall discontinue service of part or all of its fleet or operations throughout the applicable effective term of the permit, the permittee shall not be entitled to a reimbursement of any fees in proportion to the amount of time remaining in the permit period.

§ 705-81. Insurance, permits and licenses.

A permittee shall, at its own cost and expense, obtain and keep current all required insurance coverages, licenses, certifications and permits required by any governmental authority in connection with the

permittee's operations in, on and about the airport and shall, upon request, demonstrate to the Director that it possesses all such licenses, certifications and permits.

§ 705-82. Assignability.

A permittee shall have no right or power to assign, lease, sublease, license, subcontract, franchise or delegate this permit or any rights or duties pursuant hereto, or to let any space or portion thereof, nor may permittee use the space which is the subject matter of this permit for any purpose other than the parking of the permittee's authorized vehicles to provide ground transportation service.

§ 705-83. Indemnity; governmental immunity.

- A. The permittee agrees that it will, at all times, indemnify and hold harmless the County, its Commissioners, officers and elected and appointed officials, agents and employees from and against any and all loss, cost, liability, damages of whatever nature, causes of action, suits, claims, demands, judgments, awards and settlements, including, without limitation, payments of claims or liability resulting from any injury or death of any person or damage to or destruction of any property, arising out of but not limited to the permittee's area, its occupancy or use and its operation causing injury to any person or property whomsoever or whatsoever or from the willful misconduct, or the negligent or tortious act or omission of the permittee or any agents, employees, licensees, contractors or subcontractors; or the violation by the permittee of any provision of this article or any failure to comply with and perform all of the requirements of the permit and regulations promulgated by the Director except to the extent any such injury, death or damage is solely caused by the willful misconduct or grossly negligent act or omission of the County or its Commissioners, representatives, elected and appointed officials, officers or employees.
- B. The permittee agrees to defend, indemnify and hold harmless the County, its Commissioners, elected and appointed officials, officers, agents and employees from and against any and all claims or liability for compensation under any workers' compensation statute arising out of injuries sustained by any employee of the permittee, except to the extent solely caused by the willful misconduct or grossly negligent act or omission of the County or its Commissioners, representatives, elected and appointed officials, officers or employees. However, nothing in this section is intended or shall be construed to obligate the permittee to defend, indemnify or hold County harmless from or against any claim or liability under any workers' compensation statute arising out of any injury sustained by any employee of the County in the course of his or her County employment.
- C. A permittee shall, at all times during the term of its permit and with respect to all phases of its operation, comply with all laws, ordinances, rules and regulations of the United States of America, the Commonwealth of Pennsylvania, the County of Allegheny and their respective departments, agencies, commissions, political subdivisions and municipalities, and including such rules, regulations and directives as may from time to time be issued by the Director.
- D. The County shall not be liable to permittee for any violation of any such law, ordinance, rule, regulation or directive by any tenant, concessionaire or other person at the airport.

§ 705-84. Contractual arrangements.

Nothing in this article shall be construed to limit the power of the County to enter into written contracts with any persons for or with respect to the ground transportation services at the airport, and this article shall not apply to any ground transportation service or ground transportation vehicle to the extent that such service or vehicle is regulated by written contract between the County and the provider of such service or

the owner or operator of such vehicle.

§ 705-85. Enforcement and administration.

- A. The County police shall have the power and the duty to enforce the provisions within this article and the Director shall have the power and duty to administer the provisions within this article, to design and require the use of such forms, and to establish such procedural rules as he shall from time to time deem necessary or conducive to the proper and efficient administration of the provisions within this article.
- B. The County police may restrict the number of ground transportation vehicles permitted in the pickup and discharge areas at times as dictated by traffic flow or other circumstances.

§ 705-86. Violations and penalties.

- A. Any person who violates any of the regulations of this article shall be subjected to one or both of the following penalties: upon conviction of the summary proceeding, violators shall:
 - (1) Undergo imprisonment in the County jail for not more than 30 days; and/or
 - (2) Be sentenced to pay a fine, to be paid to the use of the County with costs of prosecutions, not less than \$25 nor to exceed \$100 for each conviction thereof.
- B. The Board of County Commissioners may also prescribe fines and penalties, not to exceed \$500 for the violation of County ordinances, which fines and penalties may be collected by suit brought in the name of the County in like manner as debts of like amount may be used for.
- C. Each of the sections contained in this article shall constitute a separate offense subject to the penalties outlined in Subsections A and B of this section.